

NON-DISCLOSURE AGREEMENT

Mutual Confidentiality & Non-Disclosure | Agreement No. NDA-2025-NGT-087

This Non-Disclosure Agreement ("Agreement") is entered into as of **March 15, 2025** ("Effective Date"), by and between **Northgate Biotech Inc**, a California corporation, and **Dr. Elena Vasquez**, an independent research consultant. The parties desire to explore a potential research collaboration (the "Purpose") and, in connection therewith, may disclose certain Confidential Information to each other.

PARTY 1 — DISCLOSING / RECEIVING PARTY

Northgate Biotech Inc

4250 Executive Square, Suite 900
San Diego, CA 92037, United States
Represented by: Marcus T. Brinkley,
Chief Scientific Officer

PARTY 2 — RECEIVING / DISCLOSING PARTY

Dr. Elena Vasquez

Research Consultant
47 Commonwealth Avenue, Apt. 12B
Boston, MA 02116, United States

1. Definitions

"Confidential Information" means any and all non-public technical, scientific, business, financial, or other information disclosed by one party (the "Disclosing Party") to the other (the "Receiving Party"), whether orally, in writing, or in any other form, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

1.2 Confidential Information shall not include information that: (a) is or becomes publicly available through no breach by the Receiving Party; (b) was rightfully known to the Receiving Party prior to receipt; (c) is independently developed by the Receiving Party without reference to the Confidential Information; or (d) is required to be disclosed by law or court order, provided the Receiving Party gives prompt written notice.

2. Obligations of Confidentiality

2.1 The Receiving Party agrees to: (i) hold all Confidential Information in strict confidence; (ii) not disclose Confidential Information to any third party without prior

written consent; (iii) use Confidential Information solely for the Purpose described herein; and (iv) limit access to Confidential Information to those employees, agents, or advisors who have a need to know and are bound by confidentiality obligations at least as protective as those herein.

2.2 The Receiving Party shall promptly notify the Disclosing Party upon discovering any unauthorized use or disclosure of Confidential Information.

3. Term

Parameter	Value
Effective Date	March 15, 2025
Agreement Term	2 years
Expiry Date	March 14, 2027
Survival of Obligations	3 years post-expiry

3.1 This Agreement shall remain in effect for a period of **two (2) years** from the Effective Date, unless earlier terminated by either party upon thirty (30) days' written notice. The confidentiality obligations herein shall survive termination for an additional period of three (3) years.

4. Purpose of Disclosure

4.1 The Confidential Information disclosed under this Agreement is solely for the purpose of evaluating, discussing, and potentially conducting a joint research project relating to novel oncology biomarker identification and validation (the "Research Project").

4.2 Dr. Vasquez shall not use any Confidential Information to compete with Northgate Biotech or to benefit any third party in any manner that disadvantages Northgate Biotech.

5. Return or Destruction of Information

5.1 Upon written request by the Disclosing Party, or upon expiration or termination of this Agreement, the Receiving Party shall promptly return all tangible materials containing Confidential Information or certify their destruction in writing.

6. No License Granted

6.1 Nothing in this Agreement grants the Receiving Party any right, title, interest, or license in or to the Confidential Information, except as expressly provided herein. All Confidential Information remains the sole property of the Disclosing Party.

7. Remedies

7.1 The Receiving Party acknowledges that any breach of this Agreement may cause irreparable harm for which monetary damages may be inadequate, and the Disclosing Party shall therefore be entitled to seek equitable relief, including injunction or specific performance, in addition to all other remedies available at law.

8. Governing Law

8.1 This Agreement shall be governed by and construed in accordance with the laws of the **State of California**, without regard to conflict of law principles. The parties consent to exclusive jurisdiction in the courts of San Diego County, California.

9. Entire Agreement

9.1 This Agreement constitutes the entire agreement between the parties concerning confidentiality and supersedes all prior or contemporaneous oral or written agreements on the subject matter. Amendments must be in writing and signed by both parties.

AGREED AND ACCEPTED

By signing below, each party acknowledges that it has read, understood, and agrees to be bound by the terms of this Non-Disclosure Agreement.

Marcus T. Brinkley

Chief Scientific Officer

Northgate Biotech Inc

Date: March 15, 2025

Dr. Elena Vasquez

Research Consultant

Date: March 15, 2025

Schedule 1 – Scope of Confidential Information Covered

Without limitation, the following categories of information are deemed Confidential Information under this Agreement:

- Proprietary research data, experimental results, assay protocols, and laboratory notebooks
- Unpublished manuscripts, patent applications (pending or contemplated), and invention disclosures

- Clinical trial data, patient datasets (anonymized or otherwise), and regulatory submissions
- Licensing agreements, financial projections, business plans, and investor presentations
- Personnel and staffing information, including compensation structures
- Strategic partnerships, collaborations, and M&A discussions
- Formulations, compounds, reagents, and biological materials

Schedule 2 — Authorized Contacts

Party	Authorized Contact	Title / Role
Northgate Biotech Inc	Marcus T. Brinkley	Chief Scientific Officer
Northgate Biotech Inc	Diane Holloway	General Counsel
Dr. Elena Vasquez	Dr. Elena Vasquez	Principal Investigator

Miscellaneous Provisions

Severability: If any provision of this Agreement is found to be unenforceable, the remaining provisions shall remain in full force and effect.

Waiver: Failure to enforce any provision shall not constitute a waiver of future enforcement rights.

Assignment: Neither party may assign this Agreement without the prior written consent of the other party, except that Northgate Biotech may assign in connection with a merger, acquisition, or sale of substantially all assets.

Counterparts: This Agreement may be executed in one or more counterparts, each of which shall be deemed an original. Electronic signatures shall be deemed valid.

Notice Addresses:

Northgate Biotech Inc: 4250 Executive Square, Suite 900, San Diego, CA 92037 | legal@northgatebiotech.com

Dr. Elena Vasquez: 47 Commonwealth Avenue, Apt. 12B, Boston, MA 02116 | e.vasquez.research@gmail.com